

Tentative Rulings for July 1, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVCO2601469	NAJA SANCHEZ VS UNITED STATES FIRE INSURANCE COMPANY, A DELAWARE CORPORATION	MOTION TO CONSOLIDATE

Tentative Ruling:

GRANT

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304765	CORREA VS FORD MOTOR COMPANY	MOTION FOR SUMMARY ADJUDICATION

Tentative Ruling:

DENY Summary Adjudication as to the 5th cause of action for fraudulent concealment. Deny Plaintiff's Request for Judicial Notice as the request is not dispositive to the motion.

Defendant has failed to meet its burden on summary adjudication of showing that no triable issue of material fact exists. Plaintiff purchased her vehicle from *Sunrise Ford*. (Undisputed Facts "UF" No.1 ; Liu Decl., Para.3, Exh. 2) Defendant argues there is no transactional relationship between the parties because there were no direct dealings between Plaintiff and FMC, however, FMC fails to produce any evidence that the selling dealer, *Sunrise Ford*, was not its agent. Defendant only submits its "Ford Sales & Service Agreement between Ford Motor Company and *Hemborg Ford*" (Lukas Decl., Para.4) to show lack of agency, but *Hemborg Ford* was the *repairing* dealer sued in the 6th cause of action, not the *selling* dealer. Defendant fails to produce a contract, disclaimer, or other evidence establishing that the actual selling dealer, *Sunrise Ford*, was not acting as its agent. Even if FMC had produced such a "no-agency" agreement between it and *Sunrise Ford*, the declarations of the parties in the agreement respecting the nature of the relationship is not controlling. Whether an agency relationship exists between Defendant and the dealer is a question of fact to be determined by the parties' conduct, which cannot be resolved by this motion. Additionally, this court follows *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, where the court found that the Plaintiff had sufficiently pled a transactional relationship on facts similar to this case.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401481	GARCIA VS FORD MOTOR COMPANY,	MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES SET TWO

Tentative Ruling: See Below

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401481	GARCIA VS FORD MOTOR COMPANY,	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION SET TWO

Tentative Ruling:

DENY both motions. Plaintiff's motions amount to discovery on discovery, i.e., Plaintiffs seek information regarding defendant's document retention practices and efforts to preserve documents. Discovery on discovery is only relevant where the requesting party can establish that the responding party is withholding discovery and/or acting in bad faith. Plaintiffs make no such showing here.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2403327	WATSON VS CARR	MOTION TO VACATE DISMISSAL

Tentative Ruling:

GRANT

Dismissal of 10/28/2025 is set aside.

Matter is set for an Order To Show Cause why this matter should not be dismissed for failure to file a Default Judgment packet on September 10, 2026, at 8:30am, D-4.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2504824	SPENCE VS SN SERVICING CORPORATION	MOTION FOR ORDER AUTHORIZING SERVICE OF DEFENDANT THROUGH THE CALIFORNIA SECRETARY OF STATE

Tentative Ruling:

DENY

7.

CASE #	CASE NAME	HEARING NAME
CVRI2505794	COFFELT VS STINTSON	DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN with 30 days leave to amend as to the first, second, third and sixth causes of action. SUSTAIN without leave to amend as to the seventh, eighth and ninth causes of action. OVRERRULE as to the fourth and fifth causes of action. Plaintiff shall not add new causes of action without seeking permission from the court.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2600240	PIGG VS NORTH AMERICAN SAVINGS BANK, F.S.B.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer without leave to amend.

Grant Defendant North American Savings Bank, F.S.B.'s Request for Judicial Notice.

Plaintiff is the trustee of a private trust and cannot represent the trust *in pro per*. (See *Zigler v. Nickel* (1998) 64 Cal.App.4th 545.) Plaintiff lacks standing to challenge the foreclosure because it holds no title to the property and is not a party to the Note or Deed of Trust at issue. (See Request for Judicial Notice, Exh's. A,B,K,L.) Further, Plaintiff fails to allege sufficient facts to state a quiet title or cancellation of instrument cause of action. The court takes judicial notice that the Plaintiff is not the owner of the property. The cancellation of instrument cause of action fails because Plaintiff fails to allege facts showing that the Trustee's Deed Upon Sale is void or voidable as to Plaintiff.